IN THE COURT OF MS. CHARU AGGARWAL, ASJ-02, CENTRAL, TIS HAZARI COURTS, DELHI

BAIL APPLICATION NO. /2023

IN THE MATTER OF

STATE

VERSUS

MANISH MITTAL ANDANR

SC NO. 174/2021

FIR NO. 42/2020

U/S 354D/506/509/34 IPC, 3(1)(r)(s)(w-ii)(2Va)SC/ST Act

PS: SARAI ROHILLA

BAIL APPLICATION ON BEHALF OF THE APPLICANT/ ACCUSED NO.1 MANISH MITTAL UNDER SECTION 439 OF THE COURT OF CRIMINAL PROCEDURE, 1973 FOR GRANT OF BAIL ALONG WITH AFFIDAVIT.

MOST RESPECTFULLY SHOWETH:-

1) That the chargesheet is already filed in the present case and the present case is pending before this Hon'ble Court and is fixed for arguments on framing of charges _____.
2) That at the outset, it is respectfully submitted that the applicant is totally innocent and has been falsely framed and implicated in the present case and he totally denies all the accusations.
3) That the allegation against accused No.1 are totally vague, and that they are peaceful people accused by the complainants because of their own personal prejudices against the accused and his family.
4) That the accused no.1 has not been arrest and has already received anticipatory bail and he has fully cooperated with the police during the investigation in the present FIR.

5) That no strong evidence has been recovered against the accused no.1, instead the wife of the accused no.1 has filed an FIR against the father of complainant regarding lewd and lascivious comments and death threats to him and his family.
6) That the accused no.1 is a law abiding, peaceful and responsible citizen who has never been accused of any such charges in the past and that the complainant and her family have filed so many complaints in the past just to spoil their reputation in the society.
7) That the accused no.1 is a married man who is just a neighbour to the complainants who drags him and his family into big fights over minute everyday problems.
8) That the accused no.1 has been accused under section 354D of IPC, alleging him of stalking the complainant, whereas according to the complainant, even she has found the accused no.1 in the vicinity of her college only once. No interaction took place between both of them and that mere presence of the accused no.1 near her does not amount to stalking. That the allegations against accused no.1 are false, frivolous and vexations and lack any corroboration with their statements.
9) That the allegations are just oral statements without any corroborative evidence or witnesses, thus they are not even admissible in the court.
10) That the accused no.1 has also be accused under sections 506 and 509 of IPC for criminal intimidation and words that insult the modesty of a woman respectively. Accused no.1 completely denies any such allegation and instead according to the CCTV camera installed by the father of the complainant himself, it can be seen that he engages in inappropriate behaviour with the accused no.1's

wife and tries to outrage her modesty as also mentioned in her complaint.

11) That complainant and her family has just found another reason to defame and disturb the accused no.1 and his family. The accused no.1 has already shifted from their place and if they visit their old home or their neighbours, complainant and her family make sure to quarrel and create a fight with them. They are infringing the accused's right to move around freely.

12) That the complainant has also claimed justice under section 3(1)(r) and 3(c) of the SC/ST act, accused no.1 denies all such allegations and claims that all that was said and done was part of a quarrel which was started by the complainant and her family. Instead, the accused no.1 and his family always try to make living of the him and his family difficult in the neighbourhood.

13) That complainant and her family unnecessarily involved accused no.3, who's a relative to accused no.1 and accused no.2 in their attempt to defame the accused's family even more. He was only trying to help in resolving the conflicts between the family and has no connection the complainant or her family at all.

14) That all of these complaints and accusations are a way of complainant and her family to disturb the peace of the accused no.1 and his family. They have also tried to get the electricity connection of the complainant and his family cut by making a false complaint just to disrupt their peace. If anything, accused and his family are the real victims here.

15) That the applicant/ accused no.1 is willing to furnish any surety and bail bonds to the satisfaction of this Hon'ble Court in case he is ordered to be released on bail. The applicant/accused no.1 is also willing to join and cooperate in the investigations and

bind himself by the terms and conditions laid down by the law or by this Hon'ble Court.

16) That the applicant/accused no.1 is not a previous convict and is a law-abiding citizen with immense respect for the due process of law. He understands to report to the concerned court and police station, if he is released on bail, as and when directed by this Hon'ble Court.

17) That there are no chances of the applicant/ accused no.1 influencing or threatening any public witnesses including complainant and her family members in any sense and even otherwise, he undertakes to stay away from them and not to contact them under any circumstance.

18) That the accused no.1 has deep roots in the society and possesses no risk of fleeing and there can be no apprehension of him absconding from justice or tampering with evidence.

19) That the applicant/ accused no.1 is ready to comply with any condition which this Hon'ble court deems fit and proper in the present case while granting the bail.

20) That the present application is being moved bonafidely and in the interest of justice.

PRAYER:

In the view of the aforesaid facts and circumstances and in the interest of justice, it is humbly prayed that this Hon'ble court may kindly be pleased to:

a) Grant bail to the applicant/accused no.1 Manish Mittal in FIR no.42/2020, P.S Sarai Rohilla, Delhi.

b) Take action against the complainant and her family for the troubles they have caused to the accused and his family.

c) Pass any other order(s) which this Hon'ble court may deem fit and proper in the interest of justice, equity and good conscience.

Delhi Applicant/accused no.1

Through

Dated : 10.08.2023 (Ajay Garg)

Advocate

GARG & GARG ADVOCATES

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